

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

Date Purchased:

-----X
JEROME SMITH AND ALEXANDER DAVIDSON,

SUMMONS

Plaintiffs,

Plaintiff designates
NEW YORK County as the
place of trial.

-against-

THE CITY OF NEW YORK,
DETECTIVE DANIEL CASTILLO (TAX 946837),
DETECTIVE CHARNE JIMENEZ (TAX 940304), AND
JOHN DOES 1-5,

The basis of venue is:
Location of Occurrence

Location of Occurrence:
2101 Madison Avenue

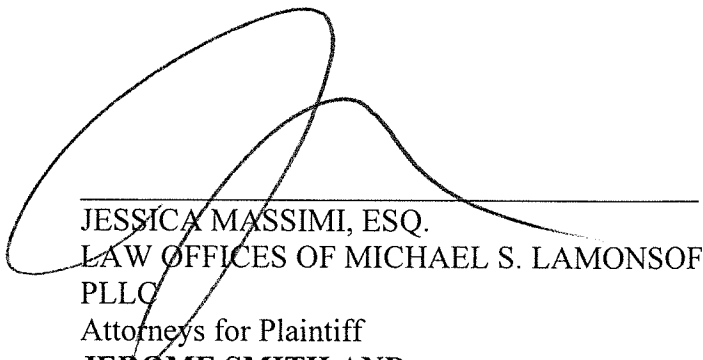
Defendants.

-----X County of New York

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
October 20, 2017



JESSICA MASSIMI, ESQ.
LAW OFFICES OF MICHAEL S. LAMONSOFF,
PLLC
Attorneys for Plaintiff
**JEROME SMITH AND
ALEXANDER DAVIDSON**
Financial Square at 32 Old Slip - 8th FL
New York, New York 10005
(212) 962-1020
Our File No. 25767

TO:

THE CITY OF NEW YORK
c/o The New York City Law Department
100 Church Street
New York, NY 10007

DETECTIVE DANIEL CASTILLO (TAX 946837)
Bronx Gang Squad
500 Abbot Street
Bronx, NY 10470

DETECTIVE CHARNE JIMENEZ (TAX 940304)
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JEROME SMITH AND ALEXANDER DAVIDSON,

Plaintiffs,

-against-

THE CITY OF NEW YORK,
DETECTIVE DANIEL CASTILLO (TAX 946837),
DETECTIVE CHARNE JIMENEZ (TAX 940304), AND
JOHN DOES 1-5,

Defendants.

-----X
Plaintiffs, JEROME SMITH AND ALEXANDER DAVIDSON, by and through their
attorneys, **THE LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC**, as and for their
Complaint, respectfully allege, upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiffs, JEROME SMITH AND ALEXANDER DAVIDSON, bring their action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of their civil rights, as said rights are secured by said statutes and the Constitution of the United States of America.

JURISDICTION

2. This action for JEROME SMITH AND ALEXANDER DAVIDSON is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution, and it is also brought pursuant to New York State Law.
3. This court has jurisdiction over each state court claim as well as each federal claim pursuant to concurrent jurisdiction.

4. Plaintiffs, JEROME SMITH AND ALEXANDER DAVIDSON, complied with all conditions precedent necessary to commencing an action pursuant to state law for malicious prosecution and denial of fair trial.

VENUE

5. Venue is properly laid in New York County Supreme Court, as the circumstances giving rise to this lawsuit took place in New York County.

NOTICE OF CLAIM

6. Plaintiffs JEROME SMITH AND ALEXANDER DAVIDSON timely filed Notices of Claim with the Comptroller of the City of New York for malicious prosecution and denial of fair trial within 90 days of the dismissal of their criminal charges complained of herein. More than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.
7. Plaintiffs, JEROME SMITH AND ALEXANDER DAVIDSON, complied with all conditions precedent to commencing an action pursuant to New York State Law for malicious prosecution and denial of fair trial.
8. Plaintiffs', JEROME SMITH AND ALEXANDER DAVIDSON, claims arising out of the dismissal of their charges have been herein filed within one year and ninety days of the accrual of those causes of action.

JURY DEMAND

9. Plaintiffs, JEROME SMITH AND ALEXANDER DAVIDSON, respectfully demand a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

10. Plaintiff, JEROME SMITH, was at all relevant times, a resident of the County of New York, City and State of New York.
11. Plaintiff, ALEXANDER DAVIDSON, was at all relevant times, a resident of the County of New York, City and State of New York.
12. The Plaintiffs no longer reside in New York County.
13. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
14. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.
15. At all times hereinafter mentioned, the individually named defendant, DETECTIVE DANIEL CASTILLO (TAX 946837), was a duly sworn member of said department and was acting under the supervision of said department and according to his official duties. Defendant Castillo is sued herein in his official and individual capacities. At all times hereinafter mentioned, Defendant Castillo was assigned to the Bronx Gang Unit of the NYPD.
16. At all times hereinafter mentioned, the individually named defendant, DETECTIVE CHARNE JIMENEZ (TAX 940304), was a duly sworn member of said department and was acting under the supervision of said department and according to his official duties. Defendant Jimenez is sued herein in his official and individual capacities. At all times

hereinafter mentioned, Defendant Jimenez was assigned to the Bronx Gang Unit of the NYPD.

17. At all times hereinafter mentioned, the Doe Defendants were members of the New York City Police Department whose identities are presently unknown, and who were employed, trained, retained, and supervised by New York City. The Doe Defendants are sued herein in their official and individual capacities.
18. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or CITY OF NEW YORK.
19. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, THE CITY OF NEW YORK.
20. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, THE CITY OF NEW YORK.

FACTS

21. On January 22, 2016, at approximately 6:00 a.m., Plaintiffs, JEROME SMITH AND ALEXANDER DAVIDSON, were lawfully inside of an apartment unit located at 2102 Madison Avenue, County of New York, City and State of New York.
22. At this time, Defendants Castillo, Jimenez, the Doe Defendants and several other members of the New York City Police Department, arrived at the location on duty and in

plain clothes.

23. Without any legal justification or excuse, the Defendants entered the apartment.
24. NYPD members then proceeded to search said premises.
25. The search revealed no evidence of any illegal activity on the part of the Plaintiffs.
26. Plaintiffs were not engaged in any unlawful or suspicious activity.
27. Nonetheless, the Plaintiffs were formally arrested, were placed in handcuffs, and were transported to the station house of a local area precinct where they were searched and detained for several hours.
28. The search yielded no evidence of any guns, drugs, or contraband
29. At no time on January 22, 2016, did Plaintiffs commit any crime or violation of law.
30. At no time on January 22, 2016, did the Defendants, or any other member of the NYPD, possess probable cause to arrest Plaintiffs or to order Plaintiffs' arrest.
31. At no time on January 22, 2016, did the Defendants, or any other member of the NYPD, possess information that would lead a reasonable officer to believe probable cause existed to arrest the Plaintiffs.
32. Plaintiffs were held for several hours at the stationhouse before they were transported to New York County Central Booking where they were held for several additional hours before they were arraigned on criminal complaints containing false allegations provided by the Defendants.
33. Specifically, Defendants Castillo and Jimenez swore out a criminal complaint against the Plaintiffs stating that Plaintiffs were in possession of marijuana, a fake gun, and ammunition in said premises.

34. These and other allegations were false and the Defendants knew they were false when he made them.
35. Pursuant to these false allegations, the Plaintiffs were charged with multiple crimes.
36. Despite Defendants' unconstitutional actions, all charges against the Plaintiffs were dismissed in their entirety on a motion of the New York County District Attorney.
37. Plaintiff Jerome Smith had his charges dismissed on December 2, 2016.
38. Plaintiff Alexander Davidson's charges were dismissed on November 15, 2016.
39. Defendants provided knowingly false and misleading information to prosecutors at the New York County District Attorney's Office.
40. Each of the allegations were false and the Defendants knew them to be false when they were made.
41. As a result of the foregoing, the Plaintiffs, JEROME SMITH AND ALEXANDER DAVIDSON, sustained, *inter alia*, embarrassment, humiliation, physical injuries, and deprivation of their constitutional rights.
42. All of the aforementioned acts of Defendants, their agents, servants and employees, were carried out under the color of state law.
43. All of the aforementioned acts deprived the Plaintiffs of their rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and were therefore in violation of 42 U.S.C. Section 1983.
44. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers with all of the actual and/or apparent authority attendant

thereto.

45. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
46. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted custom, usage, practice, procedure or rule of respective municipality/authority, which is forbidden by the Constitution of the United States.

**FIRST CLAIM FOR RELIEF FOR
FALSE ARREST
UNDER 42 U.S.C. § 1983**

47. Plaintiffs, JEROME SMITH AND ALEXANDER DAVIDSON, repeat, reiterate, and reallege each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
48. As a result of the Defendants' conduct, Plaintiffs were subject to illegal, improper and false arrest, taken into custody, and caused to be falsely imprisoned, detained, and confined without any probable cause, privilege, or consent.
49. As a result of the foregoing, Plaintiffs' liberty was restricted, they were put in fear for their safety, and they were falsely arrested without probable cause.

**SECOND CLAIM FOR RELIEF FOR
DENIAL OF RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

50. Plaintiffs, JEROME SMITH AND ALEXANDER DAVIDSON, repeat, reiterate, and reallege each and every allegation set forth above with the same force and effect as if

fully set forth herein and at length.

51. At no time did Defendants have any legal basis for commencing criminal process, nor was there any reasonable basis to believe said conduct set forth herein was lawful, reasonable, or otherwise appropriate.
52. Defendants misrepresented and falsified evidence to the New York County District Attorney.
53. Defendants did not make a complete and full statement of facts to the District Attorney.
54. Defendants withheld exculpatory evidence from the District Attorney.
55. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiffs.
56. Defendants lacked probable cause to initiate criminal proceedings against Plaintiffs.
57. Defendants acted with malice in initiating criminal proceedings against Plaintiffs.
58. Defendants directly and actively involved in the continuation of criminal proceedings against Plaintiffs.
59. Defendants lacked probable cause to continue criminal proceedings against Plaintiffs.
60. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings against Plaintiffs.
61. Notwithstanding the perjurious and fraudulent conduct of Defendants the criminal proceedings were terminated in Plaintiffs' favor when the New York County District Attorney moved to dismiss the Plaintiffs' criminal charges.
62. By so doing, the individual Defendants, individually and collectively, subjected the Plaintiffs to fabrication of evidence, denial of fair trial, and denial of due process, and

thereby violated, conspired to violate, and aided and abetted in the violation of Plaintiffs' rights under the Fourth and Fourteenth Amendments of the United States Constitution.

63. By reason thereof, the individual Defendants have violated 42 U.S.C. §1983 and caused Plaintiffs to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of their constitutional rights.

**THIRD CLAIM FOR RELIEF FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

64. Plaintiffs, JEROME SMITH AND ALEXANDER DAVIDSON, repeat, reiterate, and reallege each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
65. Defendants fabricated knowingly false material evidence and forwarded said evidence to prosecutors at the New York County District Attorney's Office.
66. As a result, Plaintiffs suffered deprivation of their liberty, as they were required to make numerous court appearances to contest the false accusations against them.
67. As a result of the foregoing, Plaintiffs' liberty was restricted, they were put in fear for their safety, and they were detained and falsely arrested, detained, and maliciously prosecuted without probable cause.

**FOURTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION AND DENIAL OF FAIR TRIAL
ON BEHALF OF PLAINTIFFS
PURSUANT TO NEW YORK STATE LAW**

68. Plaintiffs, JEROME SMITH AND ALEXANDER DAVIDSON, repeat and reiterate the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
69. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK assumed responsibility supervision, and authority over THE NEW YORK CITY POLICE DEPARTMENT and, its agents, servants and employees, and is liable to Plaintiff for the acts complained of herein under the theories of vicarious liability and *respondeat superior*.
70. Plaintiffs, JEROME SMITH AND ALEXANDER DAVIDSON, were subjected to malicious prosecution and denial of fair trial pursuant to New York State Law before their charges were dismissed.
71. Due to the unlawful conduct of the Defendants, their servants, agents, employees, licensees, independent contractors and/or police officers while in the course and scope of their employment with THE CITY OF NEW YORK, and acting under authority of the NEW YORK CITY POLICE DEPARTMENT, maliciously prosecuted and subjected to denial of fair trial, the Plaintiffs JEROME SMITH AND ALEXANDER DAVIDSON, without warrant, authority of law or probable cause therefore.
72. That as a direct, sole and proximate result of the false arrest, imprisonment, and excessive force, Plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, physical

injury, inconvenience, disturbance and disruption of life, legal expenses, and loss of personal income.

73. As a result of the foregoing, Plaintiffs JEROME SMITH AND ALEXANDER DAVIDSON were deprived of their liberty, suffered a loss of quality and/or enjoyment of life, economic injury, physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and were otherwise damaged and injured.

FIFTH CLAIM FOR RELIEF
FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

74. Plaintiff, JEROME SMITH AND ALEXANDER DAVIDSON, repeat, reiterate, and reallege each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
75. Defendants arrested, searched, and incarcerated plaintiffs, JEROME SMITH AND ALEXANDER DAVIDSON, in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search, arrest and incarceration would jeopardize Plaintiffs' liberty, well-being, safety, and violate their constitutional rights.
76. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.
77. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

78. Those customs, policies, patterns, and practices include, but are not limited to:
- i. requiring officers to make a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - ii. requiring precincts to record a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - iii. failing to take any measures to correct unconstitutional behavior when brought to the attention of supervisors and/or policy makers;
 - iv. failing to properly train police officers in the requirements of the United States Constitution.
79. The aforesaid customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department directly cause, *inter alia*, the following unconstitutional practices:
- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
 - ii. arresting individuals regardless of probable cause in order to positively affect precinct-wide statistics;
 - iii. falsifying evidence and testimony to support those arrests;
 - iv. falsifying evidence and testimony to cover up police misconduct.
80. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department constitute a deliberate indifference to the safety, well-being and constitutional rights of Plaintiffs, JEROME SMITH AND ALEXANDER DAVIDSON.
81. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiffs as alleged herein.

82. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiffs as alleged herein.
83. As a result of the foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, Plaintiffs was placed under arrest unlawfully.
84. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiffs.
85. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiffs' constitutional rights.
86. All of the foregoing acts by defendants deprived Plaintiffs of federally protected constitutional rights, particularly their Fourth and Fourteenth Amendment rights to be free from unreasonable search and seizure.

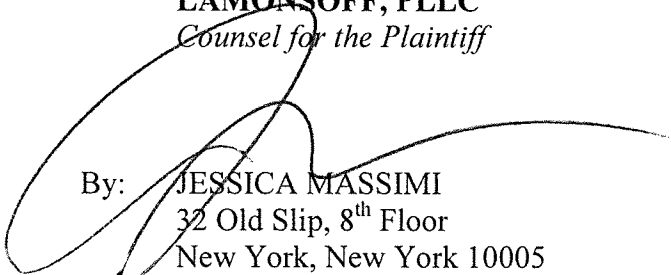
WHEREFORE, the Plaintiffs respectfully requests judgment against Defendants on each of the foregoing causes of action as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. §1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
October 20, 2017

Respectfully submitted,

**LAW OFFICES OF MICHAEL S.
LAMONSOFF, PLLC**
Counsel for the Plaintiff

By:  JESSICA MASSIMI
32 Old Slip, 8th Floor
New York, New York 10005
(212) 962-1020

VERIFICATION

JESSICA MASSIMI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LAW OFFICES OF MICHAEL S. LAMONSOFF, attorneys of record for Plaintiffs in the action within. I have read the annexed

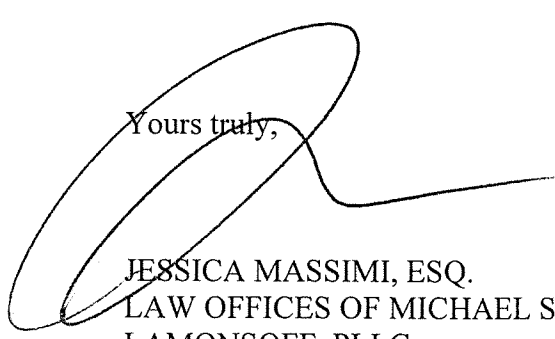
SUMMONS AND VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiffs is that Plaintiffs are not presently in the county wherein the attorneys for the Plaintiffs maintain their offices.

Dated: New York, New York
October 20, 2017

Yours truly,



JESSICA MASSIMI, ESQ.
LAW OFFICES OF MICHAEL S.
LAMONSOFF, PLLC
Attorneys for Plaintiff
32 Old Slip, 8th Floor
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